



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP
Subject: PUDC-24-89 | North Range Business Park – Annexation
Date: November 12, 2024

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 11/12/2024
- Public Services Committee 11/19/2024
- Second reading 11/25/2024
- Public Services Committee 12/03/2024
- Third and final reading 12/09/2024

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, TRACTS OF LAND SITUATE IN PORTIONS OF SECTIONS 4 AND 5, T13N, R67W, 6TH P.M., LARAMIE COUNTY, WYOMING (ALSO KNOWN AS 'NORTH RANGE BUSINESS PARK', LOCATED NORTHWEST OF THE I-80 AND ROUNDTOP ROAD INTERCHANGE)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That the City of Cheyenne has initiated this annexation in compliance with Wyo. Stat. § 15-1-404, and has adopted a Resolution certifying that the area to be annexed complies with the requirements of Wyo. Stat. § 15-1-402 (said resolution being adopted on July 22, 2024, as Resolution #6418);
- (b) That an accurate legal description of said land is as follows:

Various tracts of land situate in northwest Cheyenne more particularly described as follows:

Lot 3, Block 1, North Range Business Park; Lots 1-2, Block 6, North Range Business Park, 3rd Filing; Lots 1-2, Block 8, North Range Business Park, 3rd Filing; Lots 1-5, Block 9, North Range Business Park, 3rd Filing; Lots 1-6, Block 10, North Range Business Park, 3rd Filing; Lots 1-2, Block 11, North Range Business Park, 3rd Filing; Lot 2, Block 12, North Range Business Park, 4th Filing; Lot 3, Block 1, North Range Business Park, 5th Filing; Lots 1-2, Block 13, North Range Business Park, 6th Filing; Lots 2-4, Block 15, North Range Business Park, 8th Filing; Lot 1, Block 17, North Range Business Park, 10th Filing; Lot 1, Block 16, North Range Business Park, 11th Filing; Lot 1, Block 18, North Range Business Park, 12th Filing; Lots 1-3, Block 1, North Range Business Park, 13th Filing; Lot 1, Block 1, North Range Substation; Lot 1, Block 1, BHE Ready Subdivision; and the rights of way for Diamond Creek Drive, Veta Drive, Logistics Drive, McKinney Drive, and Horizon Drive as platted with North Range Business Park, 3rd Filing (noting that "Diamond Creek Drive" as shown on the plat was renamed "Bruns Way" on April 7, 2020, by action of the Board of County Commissioners), Laramie County, Wyoming.

- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of

basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished;

- (f) That the area is considered contiguous to the City of Cheyenne according to the provisions of Wyo. Stat. § 15-1-402 (b) and is currently zoned LI Light Industrial, PUD (Resolution #091006-32, recorded Book 2159, Page 1128), and A-2 - Agricultural by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to Wyo. Stat. § 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Section 1(b) of this Ordinance is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That pursuant to Wyoming Statute § 15-1-405, the Governing Body held a public hearing on November 12, 2024, on the proposed and annexation and found that the annexation complied Wyo. Stat. § 15-1-402.

Section 4. That the map of the area to be annexed is shown in Exhibit A, which is attached hereto and incorporated herein, satisfies the requirements of Wyo. Stat. § 15-1-406 and shall be recorded with the county clerk in conjunction with this ordinance.

Section 5. That the City Clerk is directed to file an executed copy of this annexation ordinance with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 7. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

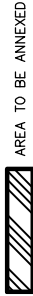
(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

LEGEND



APPROVALS

Approved by the City Council of the City of Cheyenne, Wyoming, this ____ day of _____, 2024.

Mayor

Attest: City Clerk

ANNEXATION AREA

TOTAL AREA: 836.79 ACRES
ABUTTING ANNEXATION AND RATIO TO TOTAL PERIMETER - 0%

Adjacent per Wyoming State Statute 15-1-402 (b) (across I-80 highway) annexation and ratio to total perimeter - 19%

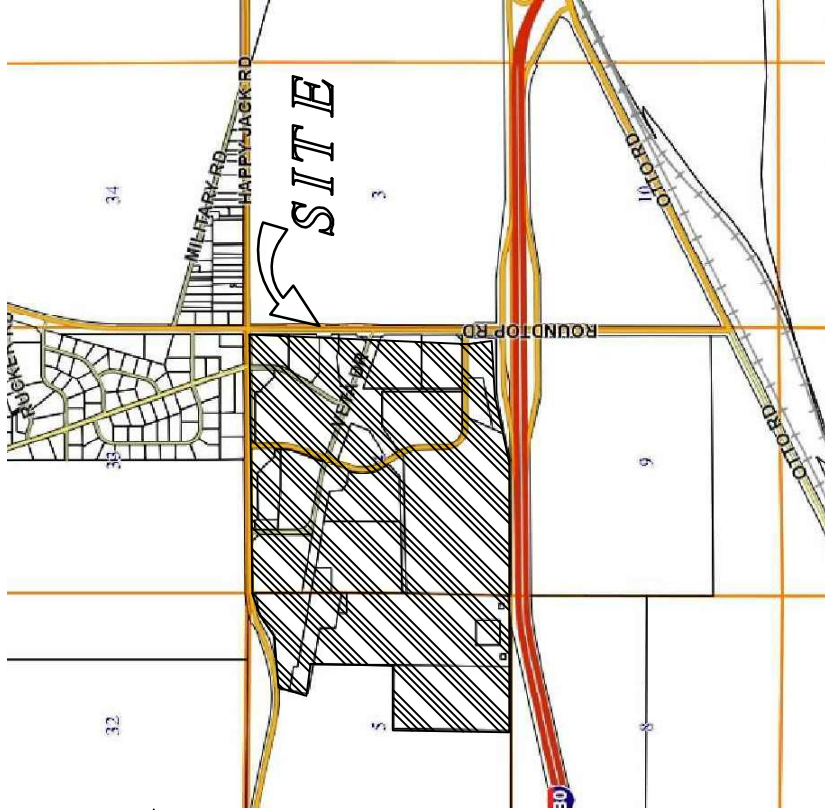
ANNEXATION DESCRIPTION

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Lot 2, Block 12, North Range Business Park, 4th Filing;
Lot 3, Block 1, North Range Business Park, 5th Filing;
Lots 1-2, Block 13, North Range Business Park, 6th Filing;
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Lot 1, Block 18, North Range Business Park, 12th Filing;
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AND

The rights of way for Diamond Creek Drive, Veta Drive, Logistics Drive, McKinney Drive, and Horizon Drive as platted with North Range Business Park, 3rd Filing (noting that "Diamond Creek Drive" as shown on the plat was renamed "Brun's Way" on April 7, 2020, by action of the Board of County Commissioners), Laramie County, Wyoming.

FILING RECORD

EXHIBIT A
ANNEXATION MAP
OF
NORTH RANGE BUSINESS PARK,
LARAMIE COUNTY, WYOMING



VICINITY MAP

(NOT TO SCALE)

PREPARED APRIL 2024

BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



STEIL SURVEYING SERVICES, LLC
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PLANNING & DEVELOPMENT SPECIALISTS
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www.steilsurvey.com • info@steilsurvey.com

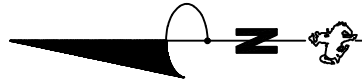
REVISED: 5/2/2024
24181 ANNEX.DWG

NORTH RANGE BUSINESS PARK
SITUATE IN SECTIONS 4 & 5
T13N, R67W OF THE 6TH P.M.,
LARAMIE COUNTY, WYOMING.

ANNEXATION DESCRIPTION

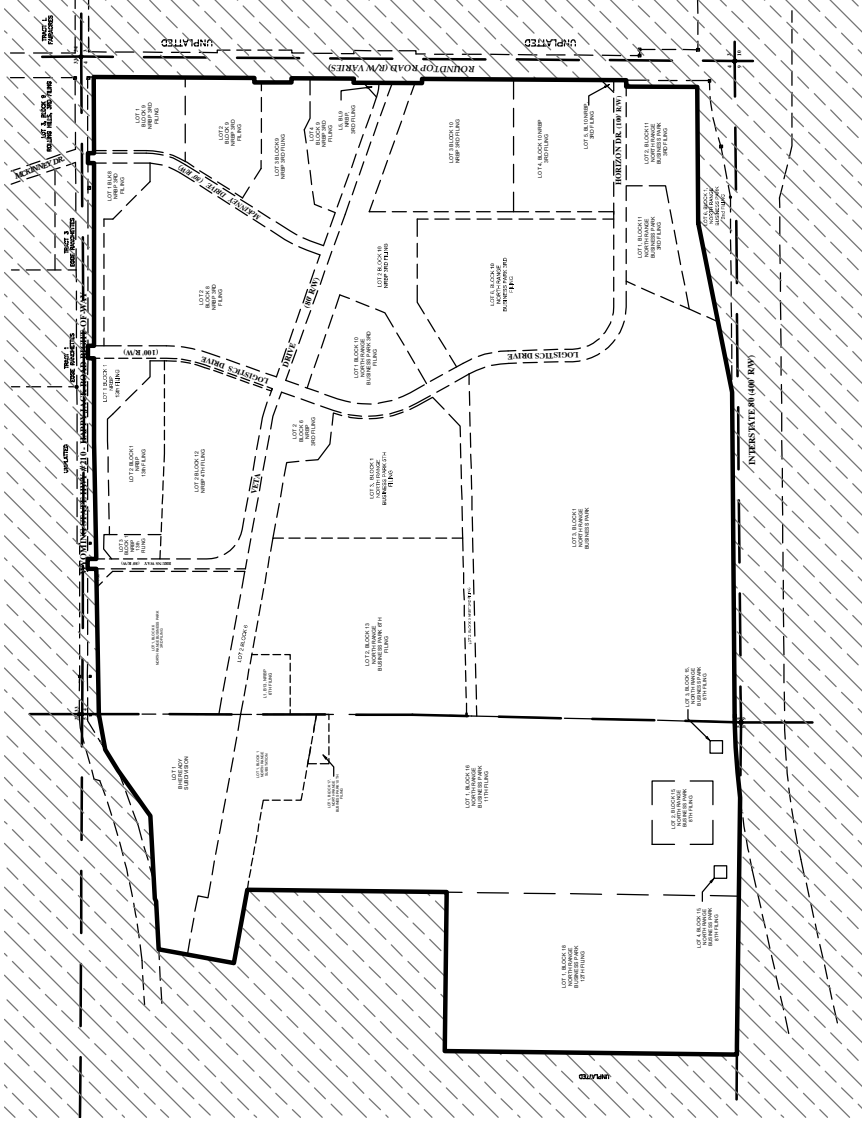
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Scale: 1" = 1000'

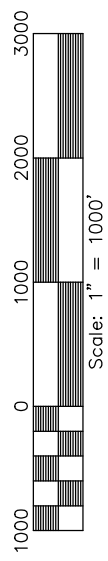
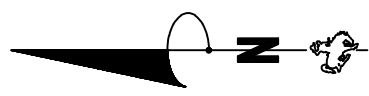
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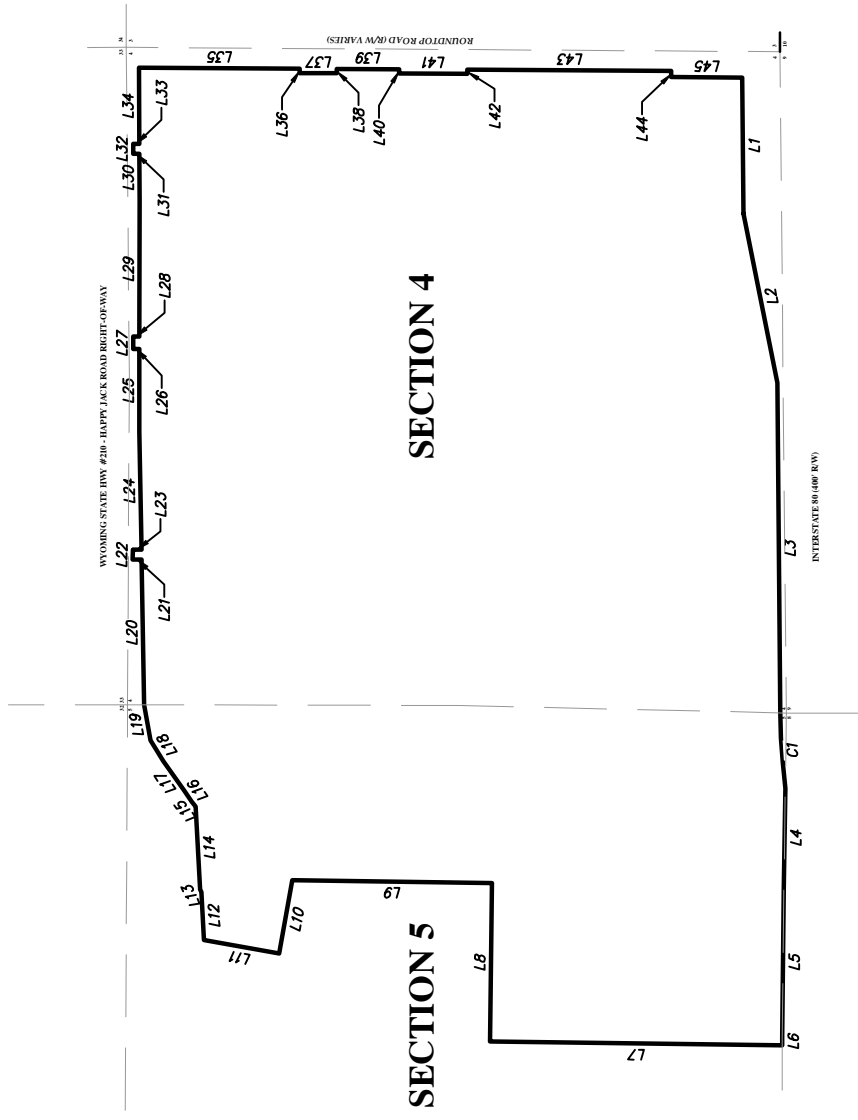


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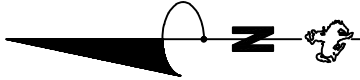
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FILING RECORD

CURVE TABLE

CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	5° 53' 10"	5929.60'	S86° 05' 14"W	608.90'	609.17'

LINE TABLE

Line #	Bearing	Length
L1	S89° 31' 56"W	1094.80'
L2	S78° 41' 09"W	1389.52'
L3	S89° 31' 22"W	2655.24'
L4	N89° 15' 43"W	791.89'
L5	N89° 15' 43"W	1206.14'
L6	N89° 55' 40"W	70.82'
L7	N0° 44' 26"E	2350.70'
L8	S89° 15' 43"E	1276.96'
L9	N0° 44' 26"E	1606.77'
L10	N79° 45' 14"W	599.85'
L11	N10° 17' 48"E	614.39'
L12	N86° 46' 01"E	386.87'
L13	N65° 31' 19"E	22.45'
L14	N86° 51' 01"E	667.70'
L15	N52° 45' 09"E	48.07'
L16	N55° 07' 45"E	107.21'
L17	N54° 59' 50"E	293.45'
L18	N58° 21' 24"E	196.59'
L19	N79° 32' 59"E	289.47'
L20	N89° 00' 22"E	1169.86'
L21	N0° 00' 00"E	70.47'
L22	S89° 55' 13"E	80.09'
L23	S0° 04' 20"W	68.90'

LINE TABLE

Line #	Bearing	Length
L24	N88° 57' 27"E	948.93'
L25	S89° 56' 04"E	666.14'
L26	N0° 00' 00"E	50.10'
L27	S89° 56' 35"E	100.00'
L28	S0° 00' 00"E	50.00'
L29	S89° 56' 35"E	1088.30'
L30	N89° 50' 18"E	383.20'
L31	N0° 00' 00"E	50.00'
L32	N89° 50' 18"E	80.00'
L33	S0° 00' 00"E	50.00'
L34	N89° 50' 18"E	611.35'
L35	S0° 20' 06"W	1291.34'
L36	N89° 39' 55"W	35.76'
L37	S0° 12' 50"W	300.00'
L38	S89° 39' 55"E	35.13'
L39	S0° 20' 06"W	500.00'
L40	N89° 39' 55"W	34.07'
L41	S0° 12' 50"W	550.00'
L42	S89° 39' 47"E	32.91'
L43	S0° 20' 06"W	1641.81'
L44	S89° 59' 57"W	50.01'
L45	S0° 20' 06"W	571.80'



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CITY OF CHEYENNE GOVERNING BODY NOVEMBER 12, 2024 STAFF REPORT

FILE: PUDC-24-89: North Range Business Park - Annexation

REQUEST: A City-initiated annexation of 640 acres of land

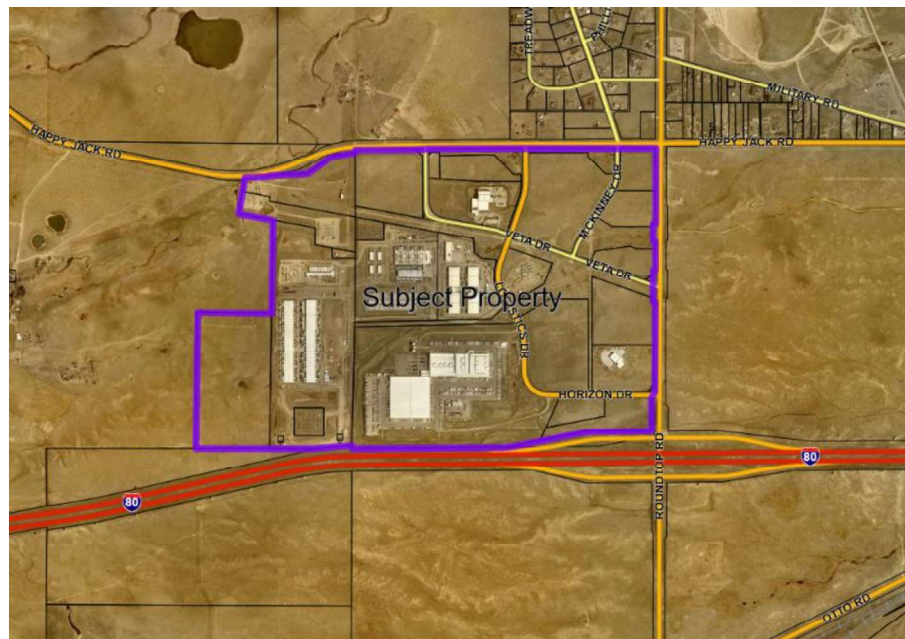
LOCATION: Northwest of the intersection of Roundtop Road and I-80

APPLICANT: City of Cheyenne

OWNERS: Microsoft Corporation, Cheyenne Light Fuel and Power Co, Walmart Stores East Ltd Ptnsp, Cheyenne Leads, Tri State Generation and Transmission Assoc Inc, Mine One Wyoming Data Center LLC, North Range Business Park Comm Owners Assoc, UMC Prop LLC, Westcom Properties LLC, University Corp For Atmospheric Research, Advanced Communications Technology Inc, YZY Capital Holdings LLC

PURPOSE: Annexation of North Range Business Park

PREPARED BY: Seth Lloyd, AICP, Senior Planner



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

This project annexes North Range Business Park. The business park was established with various Outside User Agreements to utilize BOPU water and sewer. These agreements included a stipulation that the land would be annexed once eligible according to state statute. With an annexation south of I-80 occurring earlier in 2024, the business park became eligible for annexation and the City initiated annexation in accordance with the outside user agreements. Any City-initiated annexation requires a resolution to be passed prior to the public hearing and passage of the Ordinance. The resolution for this project was adopted on July 22, 2024, as Resolution #6418. The annexed area will be assigned City zoning based on the underlying County zones.

Land annexed to the City requires a City zone. The annexation will be accompanied by assigned City zones of BP Business Park, LI Light Industrial, and AG Agricultural.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Current Land Use
Subject Site	Mixed-use Employment	County PUD, County LI Light Industrial, County A-2 Agricultural	Data Center, Employment, Limited Industrial
North	Urban Transition Residential, Community Business	County A-2, County A-1 Agricultural and Rural Residential, County HR High-density Residential, County NB Neighborhood Business, County P Public, County PUD	Moderate Industrial, Residential, Mixed Use, Vacant / Agriculture
South	Industrial, Mixed-use Employment, Agricultural/Rural	County A-2, City LI	Vacant / Agriculture
East	Mixed-use Employment, Mixed-use Residential	County A-2	Vacant / Agriculture
West	Mixed-use Employment	County A-2	Vacant / Agriculture

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

- 1) **An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being in City limits, the property will receive access to City Fire and Police and sanitation services. The property, if occupied, will also be required to be connected to City water and sanitary sewer instead of having wells and septic systems.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The property is adjacent to the City to the south. The area already has urban services in the form of water and sewer provision. The contiguity and existing City services make the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. City water and sewer is already being provided to the subject property.

The application **complies** with this review criterion.

4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]

The area proposed for annexation is not contiguous, but is adjacent across the I-80 right-of-way. Highway rights-of-way do not adversely affect contiguity per Wyoming State Statute 15-1-402 (b). If the I-80 right-of-way is not counted, the property would be 19% contiguous to the south.

The application **complies** with this review criterion.

5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public

utilities within the territory and by first class mail to any persons owning property that is adjacent to or within three hundred (300) feet of the territory proposed to be annexed, regardless of whether the property is inside or outside the corporate limits of the annexing city or town and regardless of whether the city or town is exercising authority under W.S. 15-3-202(b)(ii), a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]

A certified mailing was made to the landowners and public utilities on October 10, 2024. Neighbors within 300' were mailed first-class letters the same day. The public hearing for this annexation is scheduled for November 12, 2024. Twenty (20) business days (on the City's calendar) prior to the announced public hearing is October 14, 2024. The earliest confirmation of delivery was dated October 11, 2024.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with mixed-use employment uses. These areas are generally expected to develop with full access to urban services – such areas are best served by being within City limits. The area is within the Urban Service Boundary.

STAFF REVIEW:

Through the review process, no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

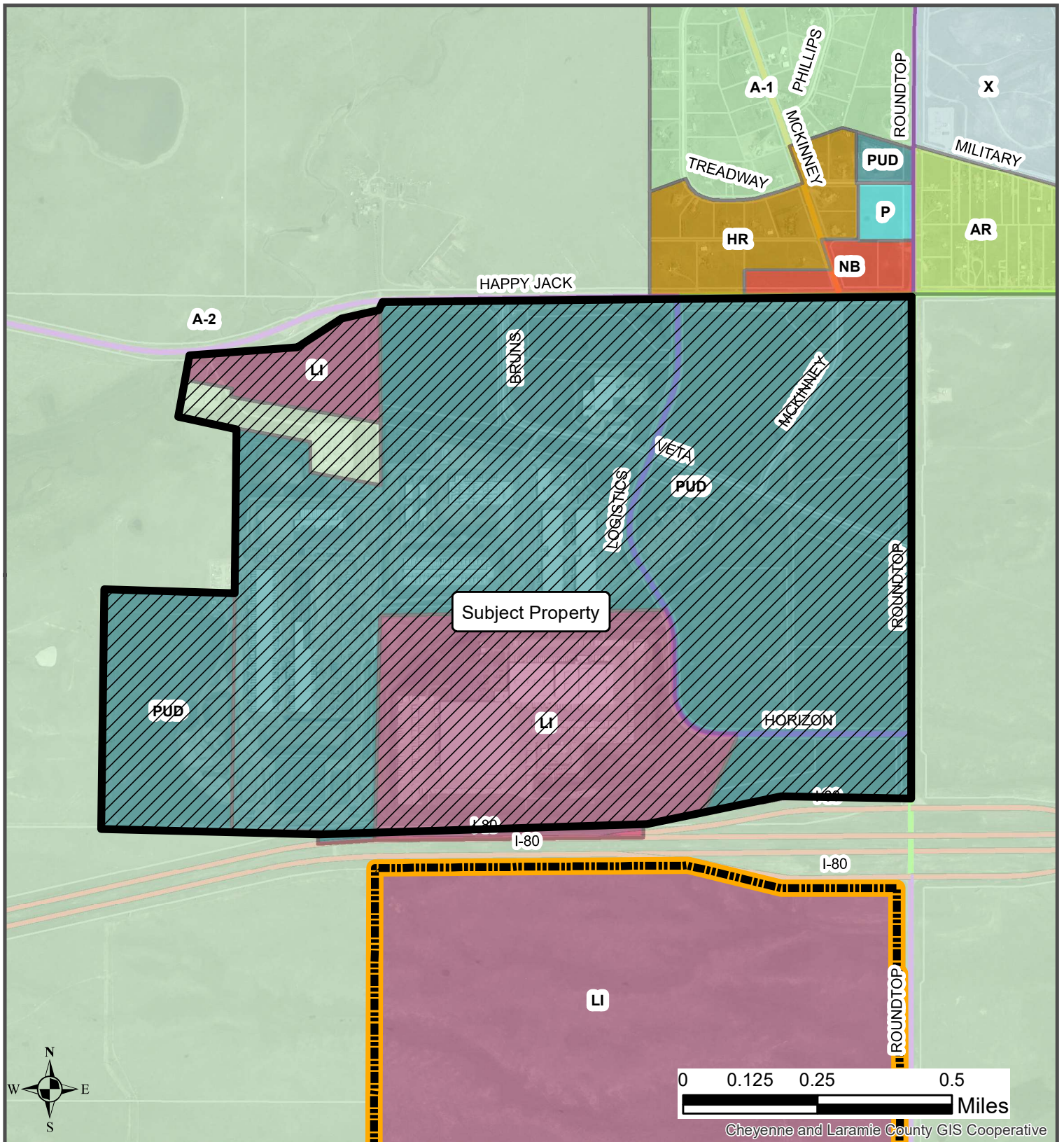
The proposed annexation is a natural extension of the City, is contiguous to the current City limits [with the exception allowed by Wyoming State Statute 15-1-402 (b)], and most services typically available to urban areas are available to be extended to this property.

STAFF RECOMMENDATION:

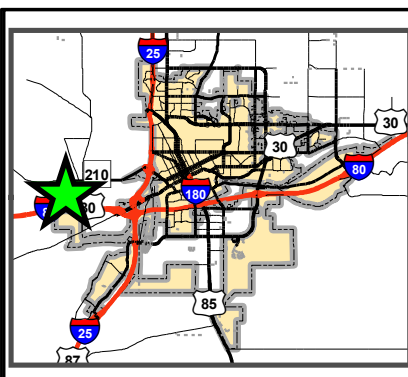
Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map



Cheyenne and Laramie County GIS Cooperative

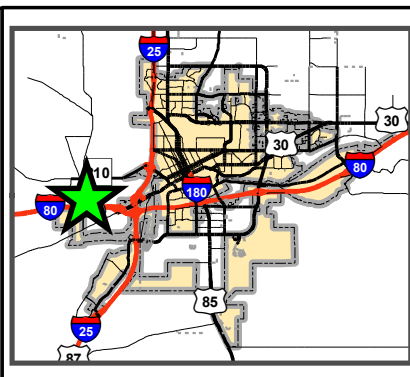
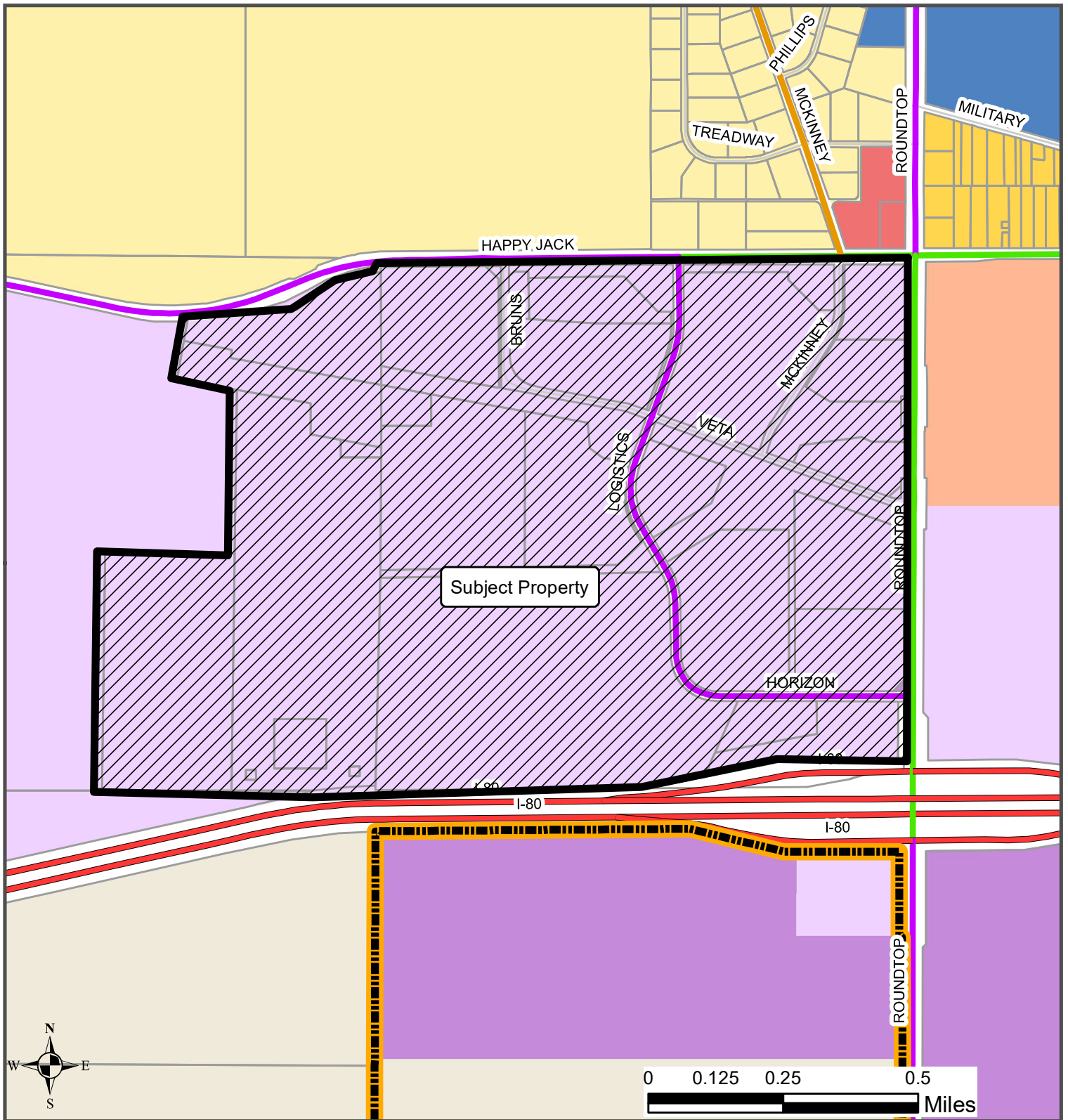


Attachment 1: Zoning Map PUDC-24-89

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-89

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Legend

	CHEYENNE		Agricultural/Rural		Industrial
	Interstate		Rural Residential		Central Business District
	Principal Arterial		Urban Transition Residential		Community Business
	Minor Arterial		Urban Residential		Public and Quasi-Public
	Major Collector		Mixed-Use Residential		Military/Federal
	Minor Collector		Mixed-Use Commercial		Open Space and Parks
	Local		Mixed-Use Employment		
	Private				
	Platted not built				
	Ownership				